

Stereo. H C J D A-38.
JUDGMENT SHEET
IN THE LAHORE HIGH COURT, MULTAN
BENCH, MULTAN
JUDICIAL DEPARTMENT

Civil Revision No.354-D of 2015

Muhammad Ramzan

Versus

Muhammad Razzaq

J U D G M E N T

Date of hearing: 27.04.2026.
Petitioner by: Mr. Muhammad Masood Bilal, Advocate.
Respondent by: Mr. Muhammad Aurangzeb, Advocate.

MUHAMMAD SAJID MEHMOOD SETHI, J.- The instant civil revision petition is directed against the concurrent judgments and decrees dated 31.01.2012 and 10.03.2015, passed respectively by the learned Civil Judge and the Additional District Judge, Chichawatni, whereby the suit for possession through pre-emption instituted by the respondent was decreed and the appeal preferred by the present petitioner was dismissed.

2. The factual matrix, in brief, is that the respondent/plaintiff instituted a suit for possession on the basis of pre-emption in respect of land measuring 08 Kanals situated in Chak No.58/12-L, Tehsil Chichawatni, District Sahiwal, asserting that the petitioner/defendant had purchased the suit property vide mutation No.917 dated 29.05.2008 for a consideration of Rs.500,000/-. The respondent claimed a superior right of pre-emption on the grounds of contiguity, co-sharership, and common source of irrigation and passage. It was further pleaded that upon acquiring knowledge of the sale on 02.06.2008 at about 12:00 noon, the respondent performed Talab-i-Muwathibat and thereafter Talab-i-Ishhad through issuance of notice dated 03.06.2008. The petitioner, while contesting the suit, denied the

respondent's preferential right as well as the alleged performance of *Talabs* and also raised legal objections regarding maintainability and absence of cause of action. Upon framing of issues and recording of evidence, the learned Trial Court decreed the suit, which decree was maintained in appeal.

3. Learned counsel for the petitioner contends that both the learned Courts below have concurrently fallen into serious errors of law and fact, as the impugned judgments are based on misreading, non-reading, and erroneous appraisal of evidence, rendering them unsustainable in revisional jurisdiction. He argues that the respondent miserably failed to establish any preferential right of pre-emption, as the alleged plea of contiguity, common passage, and common source of irrigation was neither proved through best evidence nor supported by mandatory revenue record such as *Aks Shajra* or examination of relevant revenue officials, whereas the reliance placed by the learned Courts below on inadmissible or improperly tendered documents has vitiated the findings. He further submits that the entire foundation of the respondent's case regarding performance of *Talab-i-Muwathibat* is legally defective, as the evidence on record itself demonstrates prior knowledge of sale much earlier than the alleged date of *Talab*, while material admissions in cross-examination of respondent's witnesses further negate the plea of prompt performance. He also contends that the alleged *Talab-i-Ishhad* was not proved in accordance with law, as the evidence regarding preparation, authorship, and dispatch of notice is riddled with material contradictions between witnesses, and even the postal record does not support proper service, thereby failing the strict statutory requirements of pre-emption law. Lastly, he urges that both the learned Courts below proceeded on conjectures and surmises, ignored material contradictions, and failed to apply settled legal principles, resulting in grave miscarriage of justice calling for interference by this Court.

4. Conversely, learned counsel for the respondent defends the impugned judgments & decrees by contending that the respondent duly proved the sale transaction as well as timely performance of *Talb-i-*

Muwathibat on 02.06.2008, which was even admitted by the petitioner in cross-examination, leaving no factual dispute on this score. He further argues that *Talb-i-Ishhad* was validly completed through registered notice dated 03.06.2008 (Ex.P-1 to Ex.P-5), duly sent on correct address with supporting postal evidence, attracting presumption of service under law. He submits that the respondent had a superior right of pre-emption being co-sharer and adjacent landowner, duly established through revenue record (Ex.P-6 & Ex.P-7), whereas the petitioner failed to rebut this position with any credible evidence. Lastly, he prays that the revision petition, being meritless, be dismissed.

5. Arguments heard. Available record perused.

6. The entire controversy pivots around two foundational requirements of a pre-emption suit, namely: (i) existence of a legally enforceable superior right of pre-emption, and (ii) strict and unimpeachable compliance of the mandatory *Talabs*. Failure to establish either is fatal to the claim. Insofar as the question of preferential right is concerned, the learned Courts below have recorded findings in favour of the respondent primarily on the basis of *Jamabandi* (Exh.P-6), mutation (Exh.P-7) and subsequent record (Exh.P-8). However, a critical examination of these documents reveals a glaring inconsistency which has been completely overlooked. The respondent's land is reflected in *Khewat* No.35/36, whereas the petitioner's land is shown in *Khewat* No.121/35. This discrepancy goes to the root of the matter because the claim of adjacency and contiguity cannot be assumed in the absence of clear identity and nexus of the respective holdings. The learned Courts below, instead of reconciling this inconsistency through proper evidence, have proceeded on mere assumptions, which is legally impermissible.

7. It is by now well-settled that the existence of contiguity, co-sharership, or any other foundation giving rise to a preferential right of pre-emption must be established through cogent, convincing, and legally admissible evidence. Such proof ordinarily requires production of relevant revenue record, including *Aks Shajra*, *Parcha*, site plan, or

other authoritative documents, duly exhibited in accordance with law and proved through a competent revenue official. In the present case, the respondent has miserably failed to discharge this burden. Neither any *Patwari* nor any other revenue functionary was examined to establish the exact location, boundaries, or contiguity of the suit property vis-à-vis that of the respondent. Similarly, the plea regarding existence of a common source of irrigation or passage remains a bald and unsubstantiated assertion, unsupported by any documentary evidence such as *warabandi* record, sanctioned site plan, or other relevant revenue material, and therefore cannot be accorded any legal sanctity. Reference is made to *Sarfraz Ahmed v. Iftikhar Ahmad* (2012 YLR 1719), *Nazir Ahmad and another v. Rehmat Ali through Legal Heirs and others* (2014 MLD 1168), *Muhammad Sagheer v. Fazal Karim and 3 others* (2022 YLR Note 23), *Bevergh Khan v. Surat Khan and 7 others* (2022 CLC 1382) and *Syed Shehanshah Raza Hussain Rizvi v. Tariq Nawaz Khan and 3 others* (2025 YLR 575).

8. The omission to produce the best available evidence in the facts and circumstances of the case is not a mere procedural irregularity; rather, it goes to the very root of the respondent's claim. It is a settled principle of law that where a party withholds the best evidence within its possession, the Court is justified in drawing an adverse inference against such party. In the present case, however, instead of drawing the necessary adverse inference, the learned courts below fell into patent error by shifting the burden upon the petitioner to disprove the respondent's assertions. Such an approach is clearly contrary to the settled legal position that the burden to establish a superior right of pre-emption squarely rests upon the plaintiff and must be discharged through affirmative, cogent evidence; it cannot be sustained on the basis of any default on the part of the defendant or the perceived weakness of the defence. *Mst. Zarsheda v. Nobat Khan* (PLD 2022 Supreme Court 21), *Muhammad Riaz v. Muhammad Akram and others* (2024 SCMR 692) and *Sher Ayaz Khan alias Sheraz Khana, through L.Rs. and others v. Gul Najeeb Khan* (2025 SCMR 380).

9. Even otherwise, the manner in which the documentary evidence has been relied upon is legally untenable. It is a settled principle that mere production or tendering of documents does not amount to proof unless the same are duly exhibited and proved in accordance with law through competent witnesses. The record reveals that certain documents were brought on record in a manner which effectively deprived the petitioner of a meaningful opportunity to test their authenticity and veracity through cross-examination. Such a procedural irregularity goes to the root of the matter and further vitiates the findings recorded on Issue No.4. Reference can be made to Mst. Akhtar Sultana v. Major Retd. Muzaffar Khan Malik through his legal heirs and others (PLD 2021 Supreme Court 715) and Rustam and others v. Jehangir (deceased) through LRs. (2023 SCMR 730).

10. Turning to the second limb of the case, namely the performance of *Talab-i-Muwathibat*, the entire claim of the respondent hinges upon the assertion that he acquired knowledge of the impugned sale on 02.06.2008 and immediately exercised his right of pre-emption. However, this stance stands contradicted by the respondent's own evidence on record. During cross-examination, it has been unequivocally admitted that the petitioner had taken possession of the suit property at the time of attestation of mutation on 29.05.2008 and had been cultivating the same thereafter. These admissions unmistakably indicate that the respondent either had actual knowledge or, at the very least, constructive notice of the transaction from the date of mutation. In the law of pre-emption, where promptness and immediacy are of the essence, the performance of *Talab-i-Muwathibat* must follow without any undue delay. Even a slight and unexplained lapse is sufficient to defeat the claim. In this backdrop, the plea that knowledge was acquired on a later date becomes inherently doubtful and cannot be accepted at face value. The prior knowledge attributable to the respondent renders the subsequent assertion of immediate *Talab* legally unsustainable. It is a settled proposition that once knowledge, actual or constructive, is established, any delay in asserting the right of pre-emption proves fatal to the claim. Reliance is placed upon Mian

Pir Muhammad and another vs. Faqir Muhammad through L.Rs. and others (PLD 2007 SC 302), Muhammad Riaz vs. Muhammad Akram and others (2024 SCMR 692) and Nawabzada Muhammad Fateh Khan vs. Mumtaz Ahmad and others (2025 SCMR 912).

11. The matter is further compounded by a material inconsistency arising from the suggestion put to the petitioner during cross-examination, wherein the date of alleged knowledge and declaration was stated as 20.06.2008 instead of 02.06.2008. This contradiction is not a trivial discrepancy but goes to the heart of the requirement of certainty and promptness in the performance of *Talab-i-Muwathibat*. The learned Courts below have failed to address this inconsistency and, instead, have misread the statement of the petitioner as an admission supporting the respondent's case. A careful reading of the said statement, however, shows that it does not corroborate the pleaded version and has been misconstrued to the detriment of the petitioner. Such misreading of evidence has materially affected the conclusions drawn and cannot be sustained.

12. With regard to *Talab-i-Ishhad*, the infirmities are even more pronounced. The respondent sought to prove the issuance and dispatch of notice dated 03.06.2008 through oral testimonies and documentary exhibits. However, the statements of the witnesses are riddled with contradictions regarding the preparation and authorship of the notice. One witness (PW-1 – plaintiff) attributes its drafting to a clerk and another witness (PW-2) to counsel, while the Computer Operator (PW-5) himself has stated that he prepared the notice at the instance of the respondent, thereby negating the earlier version. These contradictions strike at the credibility of the entire process of preparation of notice.

13. Furthermore, the postal receipt relied upon by the respondent admittedly does not bear the stamp of any post office, which casts serious doubt on its authenticity. In the absence of proper proof of dispatch, the presumption of service cannot be invoked. The learned Courts below, however, have brushed aside these material defects and have accepted the respondent's case without undertaking a critical analysis of the evidence, thereby falling into error.

14. It is a settled proposition that the requirements of *Talabs* in a pre-emption suit are to be strictly construed and strictly proved. The law does not permit any latitude or approximation in this regard. Any inconsistency, delay, or doubt in the performance of *Talabs* is fatal to the claim. In the present case, both *Talab-i-Muwathibat* and *Talab-i-Ishhad* suffer from serious legal and factual infirmities, rendering the respondent's claim unsustainable. Reliance is placed upon *Bashir Ahmed and another v. Mushtaq Ahmed* (2007 SCMR 895), *Dr. Pir Muhammad Khan v. Khuda Bukhsh and others* (2015 SCMR 1243), *Manzoor Hussain (deceased) through L.Rs. v. Misri Khan* (PLD 2020 Supreme Court 749) and *Muhammad Bakhsh v. Faiz Muhammad and others* (PLD 2021 Lahore 52).

15. The cumulative effect of the foregoing discussion leaves no manner of doubt that the findings recorded by the learned courts below do not stem from a proper and judicious appraisal of the evidence available on record. Rather, the same stand vitiated by misreading as well as non-reading of material evidence, an erroneous shifting of the burden of proof, and a patent disregard of the settled principles governing the law of pre-emption. In such circumstances, the mere fact that the findings are concurrent does not accord them any sanctity or immunity from interference by this Court. Consequently, the impugned findings cannot be sustained in the eyes of law and are, therefore, liable to be set aside.

16. It may be observed that the revisional jurisdiction of this Court under Section 115, C.P.C. is of a limited nature and does not permit substitution of concurrent findings of fact merely on the basis of a reappraisal of evidence. However, it is equally well-settled that such restraint is not absolute. Where the findings of the courts below are shown to be the result of misreading or non-reading of material evidence, based on conjectures or surmises, or rendered in disregard of settled principles of law, interference by this Court becomes not only permissible but necessary. In such eventuality, refusal to interfere would amount to abdication of jurisdiction vested in this Court. The present case, upon careful scrutiny, clearly falls within the ambit of this

well-recognized exception. Reliance is placed upon Nazim-ud-Din and others v. Sheikh Zia-ul-Qamar and others (2016 SCMR 24), Haji Wajdad v. Provincial Government through Secretary Board of Revenue Government of Balochistan, Quetta and others (2020 SCMR 2046) and Aamir Afzal and another vs. S. Akmal (deceased) through L.Rs. and others (2024 SCMR 1649).

17. For what has been discussed above, this Court is of the considered view that the impugned judgments and decrees dated 31.01.2012 and 10.03.2015, passed by the learned Civil Judge and the Additional District Judge, Chichawatni, respectively, cannot be sustained in the eye of law. Consequently, the instant civil revision petition is **allowed**, the impugned judgments and decrees are hereby set aside, and the suit for possession through pre-emption filed by the respondent stands dismissed. No order as to costs.

(Muhammad Sajid Mehmood Sethi)
Judge

APPROVED FOR REPORTING

Judge

Sultan / A.H.S.